

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Preliminary Title	Introductory provisions	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Preliminary Title, Art. 1	N/A	This Act regulates the matter referred to in article 74 of the Constitution.	Functional	No Relationship	N/A	N/A	N/A	0	
Preliminary Title, Art. 2	N/A	This Act applies to the processing of personal data wholly or partly by automated means, and to the processing other than by automated means of personal data which form part of a filing system or are intended to form part of a filing system. Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC, hereinafter "the Regulation" also applies to the processing of personal data referred to in articles 2.2.a) and 2.2.b) of the Regulation.	Functional	No Relationship	N/A	N/A	N/A	0	
Preliminary Title, Art. 3	N/A	The free movement of personal data is neither restricted nor prohibited for reasons related to the protection of natural persons with regard to the processing of personal data. In particular, the exchange of personal data between controllers, the competent authorities, administrations, bodies and recipients as referred to in Titles 1 to 3 of this Act and acting in the context of the purposes referred to in article 23.1.a) to h) of the Regulation cannot be restricted or prohibited for such reasons. However, a restriction or prohibition may be imposed in cases where there is a high risk that the exchange of the data may lead to a circumvention of this Act.	Functional	No Relationship	N/A	N/A	N/A	0	
Preliminary Title, Art. 4	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Preliminary Title, Art. 4(1)	N/A	This Act shall apply to the processing of personal data in the context of the activities of an establishment of a controller or processor established on Belgian territory, whether or not the processing is performed on Belgian territory.	Functional	No Relationship	N/A	N/A	N/A	0	
Preliminary Title, Art. 4(2)	N/A	This Act shall apply to the processing of personal data of data subjects who are on Belgian territory, by a controller or processor not established in the European Union, where the processing activities are related to: 1° the offering of goods or services to such data subjects on Belgian territory, irrespective of whether a payment of the data subject is required; or 2° the monitoring of their behaviour as far as their behaviour takes place on Belgian territory.	Functional	No Relationship	N/A	N/A	N/A	0	
Preliminary Title, Art. 4(3)	N/A	By way of derogation from paragraph 1, when the controller is established in a Member State of the European Union and resorts to a processor established on the Belgian territory, the law of the Member State in question applies to the processor, provided that the processing activities take place on the territory of that Member State.	Functional	No Relationship	N/A	N/A	N/A	0	
Preliminary Title, Art. 4(4)	N/A	This Act shall apply to the processing of personal data by a controller which is not established on Belgian territory, but in a place where Belgian law applies under public international law.	Functional	No Relationship	N/A	N/A	N/A	0	
Preliminary Title, Art. 5	N/A	The definitions of the Regulation apply. For the purposes of this Act "public authority" means: 1° the Federal State, the federated entities and the local authorities; 2° the legal persons under public law subordinate to the Federal State, the federated entities or the local authorities; 3° the persons, whatever their form or nature: - established for the specific purpose of meeting needs of general interest, without any industrial or commercial character; and - having legal personality; and - either whose activities are mainly financed by the public authorities or bodies referred to in the provisions sub 1 or 2°, either whose management is subject to supervision of those authorities or bodies, or having an administrative, management or supervisory body of which more than half of the members are appointed by these authorities or bodies; 4° associations composed of one or more public authorities as referred to in the provisions sub 1°, 2° or 3°.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1	The protection of natural persons with regard to the processing of personal data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter I	General provision	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter I, Art. 6	N/A	Without prejudice to specific provisions, this title enforces the Regulation.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter II	Principles relating to the processing	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter II, Art. 7	N/A	In implementation of article 8.1 of the Regulation, the processing of personal data related to children in relation to the offer of information society services directly to a child is lawful where the consent has been given by children who are at least 13 years old. Where the processing concerns personal data of a child below the age of 13 years, such processing shall be lawful only if that consent is given by the child's legal representative.	Functional	Intersects With	Prohibition of Selling, Processing and/or Sharing Personal Data (PD)	PRI-03.3	Mechanisms exist to prevent the sale, processing and/or sharing of Personal Data (PD) when: (1) Instructed by the data subject; or (2) The data subject is a minor, where selling and/or sharing PD is legally prohibited.	5	
Title 1, Chapter II, Art. 8	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter II, Art. 8(1)	N/A	In implementation of article 9.2.g) of the Regulation, the processing activities listed hereafter shall be regarded as necessary for reasons of substantial public interest: 1° the processing by associations with legal personality or foundations whose principal legal objective is to defend and promote human rights and fundamental freedoms, carried out to achieve that objective, provided that the processing in question was authorised by the King, by decree deliberated in the Council of Ministers, after advice of the competent supervisory authority. The King can lay down further terms for that processing; 2° the processing managed by the public utility foundation "Fondation pour Enfants Disparus et Sexuellement Exploités (Foundation for Missing and Sexually Exploited Children)" for the receipt, transmission to the judicial authorities and follow-up of data on persons suspected of having committed a criminal act or an offence in a particular file of missing persons or sexual exploitation; 3° the processing of personal data about the sexual life, carried out by associations with legal personality or foundations whose principal legal objective is to assess, supervise and treat persons whose sexual behaviour can be qualified as an offence and which, for the purpose of achieving that objective, are approved and subsidized by the competent authority. For processing activities such as these, which must be intended to assess, supervise and treat persons referred to in this paragraph and exclusively concern personal data which, as far as they relate to the sexual life, concern the persons referred to in this paragraph, a special individual authorisation must be granted by the King, by decree deliberated in the Council of Ministers, after advice of the competent supervisory authority. The decree referred to in the first subparagraph, 3°, shall specify the validity period of the authorisation, the data processing methods, the methods of supervision of the association or foundation by the competent authority and the manner in which this authority reports to the competent supervisory authority on the processing of personal data in the context of	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter II, Art. 8(2)	N/A	The controller and, where applicable, the processor, shall compile a list of the categories of persons who have access to the personal data, with a description of their capacity with respect to the processing of the data in question. This list shall be kept at the disposal of the competent supervisory authority. The controller and, where applicable, the processor, shall ensure that the designated persons are bound by a legal or legal obligation, or by an equivalent contractual provision, to respect the confidential nature of the data concerned.	Functional	Intersects With	Personal Data (PD) Categories	PRI-05.7	Mechanisms exist to define and implement data handling and protection requirements for specific categories of sensitive Personal Data (PD).	5	

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Title 1, Chapter II, Art. 8(3)	N/A	The foundation referred to in paragraph 1, first subparagraph, 2°, can't keep any file on persons suspected of having committed a criminal act or an offence or on sentenced persons. It shall appoint a data protection officer.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
Title 1, Chapter II, Art. 9	N/A	In implementation of article 9.4 of the Regulation, any controller processing genetic data, biometric data or data concerning health, shall also take the following additional measures: 1° the controller or, as appropriate, the processor, shall designate the categories of persons who have access to the personal data, and shall meticulously describe their capacity with regard to the processing of the data concerned; 2° the controller or, as appropriate, the processor, shall keep the list of the as so designated categories of persons at the disposal of the competent supervisory authority; 3° the controller shall ensure that the designated persons are bound by a legal or legal obligation or by an equivalent contractual provision to respect the confidential nature of the data concerned.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
Title 1, Chapter II, Art. 10	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter II, Art. 10(1)	N/A	In implementation of article 10 of the Regulation, the processing of personal data relating to criminal convictions and offences or related security measures shall be carried out: 1° by natural persons or legal persons governed by private or public law as far as necessary for the management of their own disputes; or 2° by lawyers or other legal advisers in so far as relevant to the defence of their clients' interests; or 3° by other persons, if the processing is necessary for reasons of substantial public interest for the performance of general interest tasks assigned by or under a law, a decree, an ordinance or European Union law; or 4° for the requirements of scientific, historical or statistical research or for archiving purposes; or 5° in cases where the data subject has given his explicit consent in writing that the personal data in question can be processed for one or more specific purposes and if the processing is strictly limited to those purposes; or 6° if the processing relates to personal data the data subject clearly disclosed on his own initiative for one or more specific purposes and if the processing of these data is limited to those purposes.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
Title 1, Chapter II, Art. 10(2)	N/A	The controller and, where applicable, the processor, shall compile a list of the categories of persons who have access to the personal data, with a description of their capacity with respect to the processing of the data in question. This list shall be kept at the disposal of the competent supervisory authority. The controller and, where applicable, the processor, shall ensure that the designated persons are bound by a legal or legal obligation, or by an equivalent contractual provision, to respect the confidential nature of the data concerned.	Functional	Intersects With	Personal Data (PD) Categories	PRI-05.7	Mechanisms exist to define and implement data handling and protection requirements for specific categories of sensitive Personal Data (PD).	5	
Title 1, Section III	Restrictions of the rights of the data subject	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Section III, Art. 11	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Section III, Art. 11(1)	N/A	Pursuant to article 23 of the Regulation, articles 12 to 22 and 34 of the Regulation, as well as the principle of transparency of the processing referred to in article 5 of the Regulation, do not apply to the processing of personal data directly or indirectly originating from the authorities referred to in Title 3, with respect to: 1° the authorities and persons referred to in articles 14, 16 and 19 of the organic Act of 30 November 1998 of the intelligence and security services to which these data are transferred by the authorities referred to in Title 3, whether directly or indirectly; 2° the authorities and persons referred to in article 2, first subparagraph, 2°, of the Threat Assessment Act of 10 July 2006 and in article 44/11/3ter, §§ 2 and 3, and article 44/11/3quater of the Act of 5 August 1992 on the Police Function, and which fall within the scope of application of Title 1, and to which these data were transferred.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Section III, Art. 11(2)	N/A	The controller referred to in this Title who is in possession of such data shall not disclose them to the data subject concerned unless: 1° it is compelled to do so by law in the context of litigation process; or 2° the authority referred to in Title 3 authorizes it to do so. The controller or the competent authority shall not mention that it is in possession of data originating from the authorities referred to in Title 3.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Section III, Art. 11(3)	N/A	The restrictions referred to in paragraph 1 also apply to the log files of the processing activities carried out by an authority referred to in Title 3 in the databases of the controllers referred to in this Title to which the authorities have direct access.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Section III, Art. 11(4)	N/A	The controller referred to in this Title who processes data originating from the authorities referred to in Title 3, whether directly or indirectly, shall as a minimum meet the following requirements: 1° it shall take the appropriate technical or organisational measures to ensure that access to the data and the processing opportunities are limited to what the persons concerned need to perform their duties or to what is necessary for the operational requirements; 2° it shall take the appropriate technical or organisational measures to protect the personal data against accidental or unauthorised destruction, against accidental loss, alteration or against any other form of unauthorised processing of the personal data concerned. Furthermore, the members of the controller's staff processing the data referred to in the first subparagraph shall also be bound by the duty of discretion.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Section III, Art. 11(5)	N/A	Where a request or complaint is submitted to the supervisory authority referred to in the Act of 3 December 2017 establishing the Data Protection Authority, and the controller invokes the application of this article, the supervisory authority shall first consult with the Standing Committee I to allow it to carry out the necessary verifications with the authority referred to in Title 3. After receipt of the reply from the Standing Committee I, the Data Protection Authority shall merely notify the data subject of the results of its verification relating to the personal data that did not originate from the authorities referred to in Title 3, which the supervisory authority is legally compelled to disclose. If the request or complaint only relates to personal data originating from an authority referred to in Title 3, the Data Protection Authority shall, after receipt of the reply from Standing Committee I, reply that the relevant verifications have been carried out.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Section III, Art. 12	N/A	Pursuant to article 23 of the Regulation, any controller who discloses personal data to an authority referred to in Subtitles 2 and 4 of Title 3 of this Act does not come within the scope of application of articles 14.1.e and 15.1.c of the Regulation or of article 20, § 1, 6° of this Act and is not entitled to notify the data subject of any such transfer.	Functional	No Relationship	N/A	N/A	N/A	0	

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Title 1, Section III, Art. 13	N/A	Where an authority referred to in Subtitles 1 and 6 of Title 3 has direct access to a public or private sector database or can search directly in that database, its processing activities of personal data in that database shall be protected by technical, organisational and individual security measures to ensure that only the following actors can have access to the content of these processing activities for the purpose of carrying out their legal supervisory tasks: 1° the data protection officer of the controller of the database; 2° the data protection officer of the authority referred to in Subtitles 1 and 6 of Title 3; 3° the controller of the database or its authorized representative; 4° the controller of the authority referred to in Subtitles 1 and 6 of Title 3; 5° any other person specified in a protocol between the controllers in so far as such access is part of the legal supervisory tasks of the data protection officers and the controllers. The security measures referred to in the first subparagraph are intended to safeguard the legal obligations about protection of sources, protection of the identity of their officers or the discretion of the investigations by the authorities referred to in Subtitles 1 and 6 of Title 3. They shall be made available to the competent supervisory authority. These processing operations shall only be accessible for purposes other than those relating to said supervision, provided the concerned controllers set out these purposes in a protocol agreement within the purposes defined by or under a law. The protocol agreement shall list the person or persons who need to have access to the log files in order to meet each purpose authorized under the third subparagraph. The log files and the security measures referred to in the first subparagraph shall be made available to the Standing Committee I. The authority referred to in Title 3 can depart from the first subparagraph in cases where access to its processing activities in a database and to the log files is unlikely to be damaging to the interests referred to in the second subparagraph.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Section III, Art. 14	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Section III, Art. 14(1)	N/A	Pursuant to article 23 of the Regulation, the rights referred to in articles 12 to 22 and 34 of the Regulation and the principle of transparency of the processing referred to in article 5 of the Regulation do not apply to the processing of data originating, whether directly or indirectly, from the judicial authorities, the police services, the General Inspectorate of the Federal and Local Police, the Financial Intelligence Processing Unit, the General Administration of Customs and Excise Duties and the Passenger Information Unit as referred to in Title 2, with respect to: 1° the public authorities, within the meaning of article 5 of this Act, to which the data were transferred by or under a law, decree or ordinance; 2° other institutions and bodies to which the data were transferred by or by virtue of a law, decree or ordinance.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Section III, Art. 14(2)	N/A	Any controller referred to in this Title in possession of data as referred to in paragraph 1 shall not disclose these data to the data subject unless: 1° it is compelled to do so by law in the context of legal proceedings; or 2° the judicial authorities, the police services, the General Inspectorate of the Federal and Local Police, the Financial Intelligence Processing Unit, the General Administration of Customs and Excise Duties and the Passenger Information Unit as referred to in paragraph 1, authorize it to do so, each in respect of the data relevant to them. The controller or the competent authority shall not mention that it is in possession of data originating from them.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Title 1, Section III, Art. 14(3)	N/A	The restrictions referred to in paragraph 1 also apply to the log files of the processing operations by the judicial authorities, the police services, the General Inspectorate of the Federal and Local Police, the Financial Intelligence Processing Unit, the General Administration of Customs and Excise Duties and the Passenger Information Unit in the databases of the controllers referred to in this Title to which they have direct access. These restrictions only apply to data that were initially processed for the purposes referred to in article 27 of this Act.	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
Title 1, Section III, Art. 14(4)	N/A	The legal safeguards referred to in article 23.2 of the Regulation that the authorities, bodies or institutions must meet are determined by or under the law. The authorities, bodies or institutions which process data originating from the judicial authorities, the police services, the General Inspectorate of the Federal and Local police, the Financial Intelligence Processing Unit, the General Administration of Customs and Excise Duties and the Passenger Information Unit, whether directly or indirectly, shall as a minimum meet the following requirements: 1° they shall take the appropriate technical or organisational measures to ensure that access to the data and the processing opportunities are limited to what the persons concerned need to perform their duties or to what is necessary for the operational requirements; 2° they shall take the appropriate technical or organisational measures to protect the personal data against accidental or unauthorised destruction, against accidental loss and alteration, and against any other form of unauthorised processing of the personal data concerned. Furthermore, any members of staff of the public authorities, bodies or institutions processing the data referred to in § 1 shall also be bound by the duty of discretion.	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	
Title 1, Section III, Art. 14(5)	N/A	Any request relating to the exercise of the rights referred to in articles 12 to 22 of the Regulation and addressed to a public authority, body or institution referred to in § 1, 1° and 2°, shall be transmitted without undue delay to the Data Protection Authority referred to in the Act of 3 December 2017 establishing the Data Protection Authority. Where the Data Protection Authority is approached by the data subject directly or by the controller invoking the application of this article, it shall carry out the necessary verifications with the relevant authorities, bodies or institutions. Where the Data Protection Authority was approached by the data subject, it shall inform this data subject in accordance with the further terms laid down by law.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Section III, Art. 14(6)	N/A	Where the processing relates to data that were initially processed by the police services or the General Inspectorate of the Federal and Local Police, the Data Protection Authority directly approached by the data subject, or by the controller invoking the application of this article, shall contact the supervisory authority referred to in article 71 so that it carries out the necessary verifications with the competent authorities, bodies or institutions. Where the Data Protection Authority was approached by the data subject, the Data Protection Authority shall, after receipt of the reply from the authority referred to in article 71, notify the data subject in accordance with the further terms laid down by law.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Section III, Art. 14(7)	N/A	Where the processing relates to data that were initially processed by the judicial authorities, the Data Protection Authority directly approached by the data subject, or by the controller invoking the application of this article, shall contact the competent supervisory authority for the judicial authorities so that it carries out the necessary verifications with the competent authorities, bodies or institutions, referred to in § 1, 1° and 2°. Where the Data Protection Authority was approached by the data subject, the Data Protection Authority shall, after receipt of the reply from the competent supervisory authority for the judicial authorities, notify the data subject in accordance with the further terms laid down by law.	Functional	No Relationship	N/A	N/A	N/A	0	

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Title 1, Section III, Art. 15	N/A	Pursuant to article 23 of the Regulation, articles 12 to 22 and 34 of the Regulation, as well as the principle of transparency of the processing referred to in article 5 of the Regulation, shall not apply to the processing of personal data by the Passenger Information Unit as referred to in Chapter 7 of the Act of 25 December 2016 on the processing of passenger data. Controllers shall not disclose the data referred to in the first subparagraph to the data subject unless compelled to do so by law in the context of legal proceedings. On no account shall controllers notify the data subjects that they are in possession of data relating to them. The restrictions referred to in the first subparagraph also apply to the log files of the processing operations by the Passenger Information Unit in the databases of the controllers referred to in this Title. Where a request or complaint is submitted to the competent supervisory authority and the controller invokes the application of this article, the supervisory authority shall merely reply that the necessary verifications have been carried out.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Section III, Art. 16	N/A	Where the personal data are mentioned in a judgment or a judicial file, or are processed in the context of criminal investigations and proceedings, the rights referred to in articles 12 to 22 and 34 of the Regulation shall be exercised in accordance with the Judicial Code, the Code of Criminal Procedure, the special laws governing criminal procedure and their implementing decrees.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Section III, Art. 17	N/A	Pursuant to article 23 of the Regulation, controllers referred to in this Title, who provide personal data to a common database, are not allowed to notify the data subject of any such transfer. By "Common database" is meant the joint exercise of the tasks exercised in the context of Title 1 and Titles 2 or 3 by several authorities, structured by means of automated processes and applied to personal data.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter IV	Controller and processor	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter IV, Section 1	General provision	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter IV, Section 1, Art. 18	N/A	In implementation of article 43 of the Regulation, certification bodies shall be accredited by the national accreditation body named in accordance with Regulation (EC) No 765/2008 of the European Parliament and of the Council of 9 July 2008 setting out the requirements for accreditation and market surveillance relating to the certification of products and repealing Regulation (EEC) No 339/93, in accordance with Standard EN-ISO/IEC 17065 and with the additional requirements established by the competent supervisory authority.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter IV, Section 2	Public sector	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter IV, Section 2, Art. 19	N/A	This Section is applicable to the police services within the meaning of article 2, 2°, of the Act of 7 December 1998 organising an integrated police service structured at two levels, which are regarded as one public authority.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter IV, Section 2, Art. 20	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter IV, Section 2, Art. 20(1)	N/A	Unless otherwise provided for in specific laws, the federal public authority shall, in implementation of article 6.2 of the Regulation, in cases where it transfers personal data to any other public authority or private body on the basis of article 6.1.c) and e) of the Regulation, formalize this transfer for each processing activity by means of a protocol negotiated between the initial controller and the recipient controller. This protocol may in particular provide for: 1° the identification of the federal public authority that transfers the personal data and the identification of the recipient; 2° the identification of the controller within the public authority that transfers the data and within the recipient; 3° the contact details of the data protection officers within the public authority that transfers the data and those of the recipient; 4° the purposes for which the personal data are transferred; 5° the categories of personal data transferred, including their format; 6° the categories of recipients; 7° the legal basis for the data transfer; 8° the methods for the communication used; 9° any specific measure that provides a framework to the transfer in accordance with the principle of proportionality and the data protection requirements by design and by default; 10° the applicable legal restrictions relating to the rights of the data subject; 11° the specific rules on the exercise of the rights of the data subject with the recipient; 12° the periodicity of the data transfer; 13° the duration of the protocol; 14° the penalties for infringements of the protocol without prejudice to Title 6.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter IV, Section 2, Art. 20(2)	N/A	The protocol shall be concluded after receipt of the respective opinions of the data protection officer of the federal public authority, in possession of the personal data, and of the recipient. These opinions shall be appended to the protocol. Where the controllers disregard at least one of these opinions, the protocol shall mention in its introductory provisions the reason or reasons why the opinion or opinions has/have been disregarded.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter IV, Section 2, Art. 20(3)	N/A	The protocol shall be published on the website of the controllers concerned.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter IV, Section 2, Art. 21	N/A	In implementation of article 37.4 of the Regulation, any private body processing personal data for the account of a federal public authority, or to which a federal public authority has transferred personal data, shall appoint a data protection officer if the processing of these data is likely to result in a high risk as referred to in article 35 of the Regulation.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter IV, Section 2, Art. 22	N/A	Where the processing of personal data is likely to result in a high risk as referred to in article 35 of the Regulation, the federal public authority shall consult the data protection officer prior to the processing. If the federal public authority continues the implementation of the processing against the opinion and the recommendations of the data protection officer, it shall give reasons for its decision. The statement of reasons shall specify why the opinion or recommendations have been disregarded.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter IV, Section 2, Art. 23	N/A	In implementation of article 35.10 of the Regulation, a specific data protection impact assessment shall be carried out prior to the processing operation even if a general data protection impact assessment has already been carried out in the context of the adoption of the legal basis.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter V	Processing for journalistic purposes and the purposes of academic, artistic or literary expression	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter V, Art. 24	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter V, Art. 24(1)	N/A	By "processing of personal data for journalistic purposes" is meant the preparation, collection, drafting, production, dissemination or archiving with a view to informing the public, via any medium, and where the controller imposes on itself rules of journalistic deontology.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter V, Art. 24(2)	N/A	Articles 7 to 10, 11.2, 13 to 15, 19 to 20 and 21.1 of the Regulation do not apply to the processing of personal data for journalistic purposes and the purposes of academic, artistic or literary expression.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter V, Art. 24(3)	N/A	Articles 30.4, 31, 33 and 36 of the Regulation do not apply to the processing of personal data for journalistic purposes and the purposes of academic, artistic or literary expression if their application would compromise a planned publication or would constitute a control measure prior to the publication of an article.	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Title 1, Chapter V, Art. 24(4)	N/A	Articles 44 to 50 of the Regulation do not apply to the transfers of personal data carried out for journalistic purposes or the purposes of academic, artistic or literary expression to third countries or international organisations in so far as necessary to reconcile the right to the protection of personal data with the right to freedom of expression and information.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 1, Chapter V, Art. 24(5)	N/A	Article 58 of the Regulation does not apply to the processing of personal data for journalistic purposes or the purposes of academic, artistic or literary expression if its application would provide indications as to the information sources or would constitute a control measure prior to the publication of an article.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2	The protection of natural persons with regard to the processing of personal data by competent authorities for the purposes of the prevention, investigation, detection or prosecution of criminal offences or the execution of criminal penalties, including the safeguarding against and the prevention of threats to public security	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter I	General provisions	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter I, Art. 25	N/A	This Title provides for the transposition of Directive (EU) 2016/680 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data by competent authorities for the purposes of the prevention, investigation, detection or prosecution of criminal offences or the execution of criminal penalties, and on the free movement of such data, and repealing Council Framework Decision 2008/977/JHA.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter I, Art. 26	N/A	For the purposes of this Title: 1° "personal data" means any information relating to an identified or identifiable natural person (hereinafter referred to as "the data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person; 2° "processing" means any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction; 3° "restriction of processing" means the marking of stored personal data with the aim of limiting their processing in the future; 4° "profiling" means any form of automated processing of personal data consisting of the use of personal data to evaluate certain personal aspects relating to a natural person, in particular to analyse or predict aspects concerning that natural person's performance at work, economic situation, health, personal preferences, interests, reliability, behaviour, location or movements; 5° "pseudonymisation" means the processing of personal data in such a manner that the personal data can no longer be attributed to a specific data subject without the use of additional information, provided that such additional information is kept separately and is subject to technical and organisational measures to ensure that the personal data are not attributed to an identified or identifiable natural person; 6° "filing system" means any structured set of personal data which are accessible according to specific criteria, whether centralised, decentralised or dispersed on a functional or geographical basis; 7° "competent authorities" means a) the police services within the meaning of article 2, 2° of the Act of 7 December	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter I, Art. 27	N/A	This Title applies to the processing of personal data by the competent authorities for the purposes of the prevention, investigation, detection or prosecution of criminal offences or the execution of criminal penalties, including the safeguarding against and the prevention of threats to public security.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter II	Principles relating to processing	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter II, Art. 28	N/A	Personal data shall be: 1° processed lawfully and fairly; 2° collected for specific, explicit and legitimate purposes and not further processed in a manner that is incompatible with those purposes; 3° adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed; 4° accurate and, where necessary, kept up to date; every reasonable step must be taken to ensure that personal data that are inaccurate, having regard to the purposes for which they are processed, are erased or rectified without delay; 5° kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data are processed; 6° processed in a manner that ensures appropriate security of the personal data, including protection against unauthorised or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organisational measures.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Title 2, Chapter II, Art. 29	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter II, Art. 29(1)	N/A	Further processing by the same or another controller for a purpose listed in article 27, other than the purpose for which the personal data were collected, is permitted insofar as: 1° the controller is authorised by law, decree, ordinance, European law or international agreement to process these personal data for such purpose; and 2° the processing is necessary and proportionate by law, decree, ordinance, European law or international agreement.	Functional	Intersects With	Restrict Collection, Processing & Sharing To Identified Purpose	PRI-04	Mechanisms exist to minimize the collection, processing and/or sharing of Personal Data (PD) to only what is adequate, relevant and limited to the purposes identified in the data privacy notice, including protections against collecting PD from minors without appropriate parental or legal guardian consent.	5	
Title 2, Chapter II, Art. 29(2)	N/A	Personal data cannot be further processed by the same or another controller for a purpose other than the one the personal data were originally collected for if that purpose cannot be qualified as one of the purposes listed in article 27, unless that further processing is authorised by law, decree, ordinance, European law or international agreement.	Functional	Intersects With	Restrict Collection, Processing & Sharing To Identified Purpose	PRI-04	Mechanisms exist to minimize the collection, processing and/or sharing of Personal Data (PD) to only what is adequate, relevant and limited to the purposes identified in the data privacy notice, including protections against collecting PD from minors without appropriate parental or legal guardian consent.	5	
Title 2, Chapter II, Art. 29(3)	N/A	Where the processing is subject to specific conditions laid down by law, decree, ordinance, European law or international agreement, the transmitting competent authority shall inform the recipient of such personal data of those conditions and the requirement to respect them.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter II, Art. 29(4)	N/A	The competent authorities transmitting data to recipients in the other Member States of the European Union are not entitled to impose any specific conditions additional to those applicable to national data transfers.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter II, Art. 29(5)	N/A	The controller shall be responsible for and be able to demonstrate compliance with this article.	Functional	Intersects With	Ability To Demonstrate Conformity	CPL-01.3	Mechanisms exist to ensure the organization is able to demonstrate security, compliance and/or resilience capability conformity with applicable cybersecurity and data protection laws, regulations and/or contractual obligations.	5	

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Title 2, Chapter II, Art. 30	N/A	Except where the maximum storage period is laid down by European law or international agreement which forms the basis for the concerned storage, the maximum storage period shall be specified by law, decree or ordinance. After that period the data shall be erased. By derogation from the first paragraph, the law, decree or ordinance can provide that, on expiry of a first storage period, an analysis must be performed on the basis of the various necessity and proportionality criteria to establish whether the data need to be retained and, where appropriate, define the new storage period. In that case, the maximum storage period shall be laid down by law, decree or ordinance.	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law; (2) Dispose of, destroys, erases, and/or anonymizes the PD, regardless of the method of storage; and (3) Use organization-defined techniques or methods to ensure secure deletion or destruction of PD (including originals, copies and archived records).	5	
Title 2, Chapter II, Art. 31	N/A	Where appropriate and insofar as possible, the controller shall clearly differentiate between the various categories of data subjects, such as: 1° persons with regard to whom there are serious grounds for believing that they have committed or will commit a criminal offence; 2° persons who have been convicted of a criminal offence; 3° victims of a criminal offence, or persons in respect of whom certain facts give cause for suspicion that they could become the victim of a criminal offence; 4° third parties to a criminal offence, such as persons who might be called on to testify in investigations in connection with criminal offences or subsequent criminal proceedings, or persons who can provide information on criminal offences, or contacts or associates of one of the persons mentioned sub 1° and 2°.	Functional	Intersects With	Personal Data (PD) Categories	PRI-05.7	Mechanisms exist to define and implement data handling and protection requirements for specific categories of sensitive Personal Data (PD).	5	
Title 2, Chapter II, Art. 32	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter II, Art. 32(1)	N/A	Insofar as possible, fact-based personal data shall be differentiated from personal data based on personal judgment.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Title 2, Chapter II, Art. 32(2)	N/A	The competent authorities shall take all reasonable measures to ensure that any personal data that are incorrect, incomplete or no longer up to date are not transmitted or made available. To do so, each competent authority shall, insofar as possible, check the quality of the personal data before the data are transmitted or made available. Insofar as possible, personal data shall at all times be transmitted together with the relevant additional information on the basis of which the receiving competent authority can assess the accuracy, completeness and reliability of the personal data, including the extent to which they are current.	Functional	Intersects With	Personal Data (PD) Accuracy & Integrity	PRI-05.2	Mechanisms exist to ensure the accuracy and relevance of Personal Data (PD) throughout the information lifecycle by: (1) Keeping PD up-to-date; and (2) Remediating identified inaccuracies, as necessary.	5	
Title 2, Chapter II, Art. 32(3)	N/A	If it turns out that incorrect personal data were transmitted or personal data were transmitted unlawfully, the recipient shall be notified without delay. In that case the personal data shall be corrected or erased, or their processing restricted in accordance with article 39.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Title 2, Chapter II, Art. 32(3)	N/A	If it turns out that incorrect personal data were transmitted or personal data were transmitted unlawfully, the recipient shall be notified without delay. In that case the personal data shall be corrected or erased, or their processing restricted in accordance with article 39.	Functional	Intersects With	Data Subject Communications	PRI-17	Mechanisms exist to craft disclosures and communications to data subjects in a manner that is concise, unambiguous and understandable by a reasonable person.	5	
Title 2, Chapter II, Art. 33	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter II, Art. 33(1)	N/A	The processing is lawful if: 1° it is necessary for the performance of a contract executed by a competent authority for the purposes referred to in article 27; and 2° it is based on a legal or regulatory obligation.	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	
Title 2, Chapter II, Art. 33(2)	N/A	The legal or regulatory obligation shall as a minimum regulate the categories of personal data that must be processed and the purposes of that processing.	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	
Title 2, Chapter II, Art. 34	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter II, Art. 34(1)	N/A	Processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, data concerning health or data concerning a natural person's sex life or sexual orientation is permitted only if the processing is strictly necessary and is carried out subject to appropriate guarantees for the rights and freedoms of data subjects, and only in the following cases: 1° if the processing is authorised by law, decree, ordinance, European law or international agreement; 2° if the processing is necessary in order to protect the vital interests of the data subject or of another natural person; 3° if the processing relates to personal data manifestly made public by the data subject.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Title 2, Chapter II, Art. 34(2)	N/A	Appropriate safeguards as referred to in paragraph 1 shall as a minimum entail that the competent authority or the controller compiles a list of the categories of persons who have access to the personal data, with a description of their capacity with respect to the processing of the data in question. This list shall be kept at the disposal of the competent supervisory authority. The competent authority shall ensure that the designated persons are bound by a legal or legal obligation, or an equivalent contractual provision, to observe the confidential nature of the data concerned.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
Title 2, Chapter II, Art. 35	N/A	Decisions solely based on automated processing, including profiling, which have adverse legal consequences for data subjects or may significantly affect them are permitted if the law, the decrees, the ordinance, the EU legislation or the international agreement provides for appropriate safeguards for the rights and freedoms of the data subject, including at least the right to human intervention on the part of the controller. Profiling leading to discrimination between natural persons on the basis of the categories of personal data referred to in article 34 is prohibited.	Functional	Intersects With	Automated Decision-Making Technology (ADMT) For Data Subject Actions	PRI-19	Mechanisms exist to ensure data subject actions utilizing Automated Decision-Making Technology (ADMT) where computation replaces, or substantially replaces, human decisionmaking, conforms with all applicable statutory, regulatory and/or contractual obligations.	5	
Title 2, Chapter III	Rights of the data subject	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 36	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 36(1)	N/A	The controller shall take appropriate measures to provide any information referred to in article 37 and any communications referred to in articles 35, 38 to 41 and article 62 in a concise, intelligible and easily accessible form, using clear and plain language. The information shall be provided by any appropriate means, by electronic means included. As a general rule, the controller shall provide the information in the same form as the request.	Functional	Intersects With	Data Subject Communications	PRI-17	Mechanisms exist to craft disclosures and communications to data subjects in a manner that is concise, unambiguous and understandable by a reasonable person.	5	
Title 2, Chapter III, Art. 36(2)	N/A	The controller shall facilitate the exercise of the data subject's rights by virtue of articles 35 and 38 to 41.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
Title 2, Chapter III, Art. 36(3)	N/A	The controller or the supervisory authority, in the case referred to in article 41, shall inform the data subject in writing, without undue delay, about the follow up to his request.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	

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Title 2, Chapter III, Art. 36(4)	N/A	Anyone is entitled to obtain the information referred to in article 37 free of charge and to request that the measures under articles 35, 38 to 41 and 62 are taken. Where requests from a data subject are manifestly unfounded or excessive, in particular because of their repetitive nature, the controller may either: 1° charge a reasonable fee taking into account the administrative costs of providing the information or communication or taking the action requested; or 2° refuse to act on the request. The controller shall bear the burden of demonstrating the manifestly unfounded or excessive character of the request.	Functional	Intersects With	Disclosure Request Rejections	PRI-07.4	Mechanisms exist to reject disclosure requests that are: (1) Unjustified; (2) Unauthenticated or untrustworthy; and/or (3) Unlawful.	5	
Title 2, Chapter III, Art. 36(5)	N/A	Where the controller has reasonable doubts about the identity of the natural person making the request referred to in article 38 or 39, the controller may request the provision of additional information necessary to confirm the identity of the data subject.	Functional	Intersects With	Justification To Reject Disclosure Requests	PRI-07.5	Mechanisms exist to document justifiable reasons for rejecting a data subject's access request for disclosure when the request is: (1) Harassing; (2) Repetitive; (3) Fraudulent; (4) Unjustified; and/or (5) Unlawful.	5	
Title 2, Chapter III, Art. 37	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 37(1)	N/A	To allow the data subject to exercise his right to information, the controller shall provide the data subject with the following information: 1° the identity and the contact details of the controller; 2° the contact details of the data protection officer, where applicable; 3° the purposes of the processing; 4° the existence of the right to lodge a complaint with the supervisory authority, and the contact details of the aforementioned authority; 5° the existence of the right to request from the controller access to and rectification or erasure of personal data or restriction of processing concerning the data subject; 6° the legal basis for the processing; 7° the period for which the personal data will be stored, or if that is not possible, the criteria used to determine that period; 8° where applicable, the categories of recipients of the personal data; 9° where necessary, further information, in particular where the personal data are collected without the knowledge of the data subject.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
Title 2, Chapter III, Art. 37(2)	N/A	The information referred to in paragraph 1 can be delayed, restricted or omitted by law, provided this constitutes a necessary and proportionate measure in a democratic society, with due regard for the fundamental rights and legitimate interests of the natural person concerned, in order to: 1° avoid obstructing inquiries, investigations, criminal procedures or other regulated procedures; 2° avoid prejudicing the prevention, detection, investigation and prosecution of criminal offences or the execution of criminal penalties; 3° protect public security; 4° protect national security; 5° protect the rights and freedoms of others.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
Title 2, Chapter III, Art. 37(3)	N/A	Except where provided under European legislation or the international agreement, the law, the decree or the ordinance can specify which processing categories can qualify as one of the points listed in paragraph 2, whether in full or in part.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 37(4)	N/A	As far as the processing operations by the common law courts and the Public Prosecutor's Office are concerned, the rights under this Chapter shall exclusively be exercised within the limits and in accordance with the rules and detailed rules of the Judicial Code, the Code of Criminal Procedure, the specific laws governing criminal justice and their implementing decrees.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 38	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 38(1)	N/A	To offer the data subject the opportunity to exercise his right to access to the personal data relating to him, the controller shall provide the data subject with the following information: 1° confirmation as to whether or not the personal data relating to him are processed and access to those data; 2° the purposes of and legal basis for the processing; 3° the categories of personal data concerned; 4° the recipients or categories of recipients to whom the personal data have been disclosed; 5° the storage period, or if that is not possible, the criteria used to determine that period; 6° the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject; 7° the right to lodge a complaint with the supervisory authority, and the contact details of that authority; 8° the personal data undergoing processing and any available information as to their origin.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
Title 2, Chapter III, Art. 38(2)	N/A	The right of access of the data subject can be restricted in whole or in part by law, decree or ordinance insofar and as long as this complete or partial restriction constitutes a necessary and proportionate measure in a democratic society, with due regard for the fundamental rights and legitimate interests of the natural person concerned, to: 1° avoid obstructing inquiries, investigations, criminal procedures or other regulated procedures; 2° avoid prejudicing the prevention, detection, investigation and prosecution of criminal offences or the execution of criminal penalties; 3° protect public security; 4° protect national security; 5° protect the rights and freedoms of others.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
Title 2, Chapter III, Art. 38(3)	N/A	In the cases referred to in paragraph 2, the controller is obliged to notify the data subject in writing and without undue delay that access has been refused or restricted and list the reasons for that refusal or restriction. The information can be omitted if there is a risk that its provision might undermine one of the purposes under paragraph 2. The controller shall notify the data subject of the option to lodge a complaint with the competent supervisory authority or to seek judicial redress.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
Title 2, Chapter III, Art. 38(4)	N/A	The controller shall document the factual or legal reasons for its decision. That information shall be put at the disposal of the competent supervisory authority.	Functional	Intersects With	Data Controller Communications	PRI-18	Mechanisms exist to receive and process data controller communications pertaining to: (1) Receiving and responding to data subject requests; (2) Updating/correcting Personal Data (PD); (3) Accounting for disclosures of PD; and (4) Accounting for PD that is stored, processed and/or transmitted on behalf of the data controller.	5	
Title 2, Chapter III, Art. 39	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Title 2, Chapter III, Art. 39(1)	N/A	The data subject shall have the right to obtain from the controller, without undue delay, the rectification of inaccurate personal data concerning him or, as appropriate, to have the data concerning him completed.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
Title 2, Chapter III, Art. 39(2)	N/A	The controller shall erase the personal data without undue delay in cases where the processing is inconsistent with the provisions approved under articles 26, 29, 33 or 34 or where the personal data must be erased to comply with a legal obligation the controller is bound by.	Functional	Intersects With	Right to Erasure	PRI-06.5	Mechanisms exist to maintain a process to erase a data subject's Personal Data (PD), in accordance with applicable laws, regulations and contractual obligations pertaining to the retention of their PD.	5	
Title 2, Chapter III, Art. 39(3)	N/A	Instead of erasing the personal data, the controller may restrict their processing in cases where: 1° the accuracy of the personal data is disputed by the data subject and there is no way of establishing whether or not the data are accurate; or 2° the personal data must be stored as evidence. When the processing is restricted on the basis of the first paragraph, 1°, the controller shall notify the data subject before lifting the processing restriction.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Title 2, Chapter III, Art. 39(4)	N/A	The controller shall notify the data subject in writing where the request for rectification, erasure or restriction of processing of the personal data has been refused and communicate the reasons for that refusal. The information can be restricted by law, decree or ordinance insofar as, in a democratic society, such restriction of processing constitutes a necessary and proportionate measure, with due regard for the fundamental rights and legitimate interests of the data subject concerned, to: 1° avoid obstructing inquiries, investigations, criminal procedures or other regulated procedures; 2° avoid prejudicing the prevention, detection, investigation and prosecution of criminal offences or the execution of criminal penalties; 3° protect public security; 4° protect national security; 5° protect the rights and freedoms of others. The controller shall notify the data subject of the option to lodge a complaint with the competent supervisory authority or to seek judicial redress.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
Title 2, Chapter III, Art. 39(5)	N/A	The controller shall communicate the rectification of the incorrect personal data to the authority that transferred the incorrect personal data.	Functional	Intersects With	Notice of Correction or Processing Change	PRI-06.2	Mechanisms exist to notify affected data subjects if their Personal Data (PD) has been corrected, amended or deleted.	5	
Title 2, Chapter III, Art. 39(6)	N/A	In the event of rectification, erasure or restriction of processing as referred to in paragraphs 1 to 3, the controller shall notify the recipients whereupon the recipients shall rectify or erase the personal data or restrict the processing of personal data within their competence.	Functional	Intersects With	Notice of Correction or Processing Change	PRI-06.2	Mechanisms exist to notify affected data subjects if their Personal Data (PD) has been corrected, amended or deleted.	5	
Title 2, Chapter III, Art. 40	N/A	The controller who receives a request to exercise a right referred to in articles 36 to 39 shall supply the applicant with a dated acknowledgement of receipt without delay and in any event within one month of receipt of the request.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
Title 2, Chapter III, Art. 41	N/A	In the cases referred to in articles 37, § 2, 38, § 2, 39, § 4, and 62, § 1, the law, the decree or the ordinance can stipulate that the rights of the data subject shall be exercised by the competent supervisory authority, with due regard for the principles of necessity and proportionality in a democratic society. Without prejudice to article 44, in the case referred to in the first paragraph, the controller shall inform the data subject that he should exercise his rights via the competent supervisory authority. In the case referred to in the first paragraph, the data subject shall lodge his request to exercise his rights with the competent supervisory authority.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 42	N/A	The request to exercise the rights referred to in this Chapter in respect of the police service within the meaning of article 2, 2° of the Act of 7 December 1998 organising an integrated police service structured at two levels or the General Inspectorate of the Federal and Local Police, shall be addressed to the supervisory authority referred to in article 71. In the cases referred to in articles 37, § 2, 38, § 2, 39, § 4, and 62, § 1, the supervisory authority referred to in article 71 shall exclusively inform the data subject that the necessary verifications were performed. Notwithstanding the second paragraph, the supervisory authority referred to in article 71 may furnish the data subject with certain contextual information. The King, on the advice of the supervisory authority referred to in article 71, defines the categories of contextual information the supervisory authority in question can communicate to the data subject.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 43	N/A	As regards the processing of personal data by the customs administration referred to in article 26, 7°, e), and the Financial Intelligence Processing Unit referred to in article 26, 7°, g), the rights of the data subject under this chapter shall be exercised by the competent supervisory authority. The competent supervisory authority shall merely inform the data subject that the necessary verifications were performed. By derogation from the second paragraph, the competent supervisory authority may communicate certain contextual information to the data subject. The King, on the advice of the competent supervisory authority, defines the categories of contextual information the supervisory authority can communicate to the data subject.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 44	N/A	Where the personal data feature in a judgment or a judicial file or are processed in the context of criminal investigations and proceedings, the rights referred to in articles 37, 38, § 1, 39 and 41, second paragraph, shall be exercised in accordance with the Judicial Code, the Code of Criminal Procedure, the specific laws governing criminal justice and their implementing decrees.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 45	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 45(1)	N/A	Articles 36 to 44 and 62 are not applicable to the processing of personal data originating, whether directly or indirectly, from the authorities referred to in Title 3 of this Act, in respect of the controllers and competent authorities referred to in this Title to whom the data in question were transferred.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 45(2)	N/A	The controller or the competent authority referred to in this Title holding such data shall not disclose them to the data subject unless: 1° it is obliged to do so by law in the context of legal proceedings; or 2° the authority referred to in Title 3 authorises it to do so.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
Title 2, Chapter III, Art. 45(3)	N/A	The controller or the competent authority shall not disclose that it is holding data originating from the authorities referred to in Title 3.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Title 2, Chapter III, Art. 45(4)	N/A	The controller referred to in this Title, who processes data originating from the authorities referred to in Title 3, whether directly or indirectly, shall as a minimum meet the following requirements: 1° it shall take the appropriate technical or organisational measures to ensure that access to the data and the processing opportunities is limited to what the persons concerned need to perform their duties or to what is required to meet the needs of the authority referred to in Title 3; 2° it shall take the appropriate technical or organisational measures to protect the personal data against accidental or unauthorised destruction, against accidental loss, alteration or against any other form of unauthorised processing of the personal data concerned. Members of staff of the controller processing data referred to in the first paragraph are bound by professional secrecy.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
Title 2, Chapter III, Art. 45(5)	N/A	The restrictions referred to in paragraph 1 also apply to the log files of the processing activities carried out by an authority referred to in Title 3 in the databases of the controllers and competent authorities referred to in this Title which the authority referred to in Title 3 has direct access to.	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
Title 2, Chapter III, Art. 45(6)	N/A	Where a request or complaint is filed with the competent supervisory authority and the controller invokes the application of this article, the supervisory authority in question shall contact Standing Committee I to get it to perform the necessary verifications with the authority referred to in Title 3. On receipt of the reply from Standing Committee I, the competent supervisory authority shall merely notify the data subject of the results of its verifications relating to the personal data that did not originate from the authority referred to in Title 3, which it is legally obliged to communicate. If the request or complaint only relates to personal data originating from an authority referred to in Title 3, the competent supervisory authority shall, on receipt of the reply from Standing Committee I, reply that the relevant verifications were performed.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 46	N/A	Any controller or competent authority referred to in this Title, who communicates personal data to an authority referred to in Subtitles 2 and 4 of Title 3 of this Act, shall not be subject to articles 37, § 1, 8° and 38 § 1, 4° and is not entitled to notify the data subject of that transfer.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 47	N/A	Where an authority referred to in Subtitles 1 and 6 of Title 3 of this Act has direct access to or received a direct enquiry from a public or private sector database, its processing of personal data shall be protected by technical, organisational and personal security measures to ensure that only the following actors can have access to the content of these processing activities in the context of the purposes referred to in article 56, § 2: 1° the data protection officer of the database controller or the person the latter has authorised to that effect; 2° the data protection officer of the authority referred to in Subtitles 1 and 6 of Title 3; 3° the database controller or the person the latter has authorised to that effect; 4° the controller of the authority referred to in Subtitles 1 and 6 of Title 3; 5° any other person designated in a protocol between controllers, who need such access to allow them to execute their legal supervisory duties. The security measures referred to in the first paragraph are intended to safeguard the legal obligations to protect sources, to protect the identity of the officers or the secrecy of the investigations by the authorities referred to in Title 3, Subtitles 1 and 6. The processing operations referred to in the first paragraph can only be accessed for purposes other than those relating to supervision on condition that these purposes, duly established by or by virtue of a law, are laid down in a protocol agreement between the controllers concerned. The protocol agreement referred to in the third paragraph shall list the person or persons who need to have access to the log files to meet each objective set out in the third paragraph. The log files and associated technical, organisational and personal security measures shall be put at the disposal of Standing Committee I. The authority referred to in Subtitles 1 and 6 of Title 3 can deviate from the first paragraph in cases where access to its processing activities in a database and to the log files cannot prejudice the interests referred to in the second paragraph.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 48	N/A	Controllers covered by this Title, who share personal data with a common database, are not permitted to notify the data subject of such transfers. "Common database" means the joint exercise of the functions carried out in the context of Titles 2 and 3 by several authorities, structured by means of automated processes and applied to personal data.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter III, Art. 49	N/A	Articles 36 to 44 and 62 do not apply to the processing of personal data by the Passenger Information Unit. Controllers shall not disclose the data referred to in the first paragraph to the data subject unless compelled to do so by law in the context of legal proceedings. On no account shall controllers notify data subjects that they are holding data relating to them. The restrictions referred to in the first paragraph also apply to the log files of the processing operations by the Passenger Information Unit in the databases of the controllers referred to in this Title. Where a request or complaint is filed with the competent supervisory authority and the controller invokes the application of this article, the former shall merely reply that the necessary verifications were performed.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter IV	Controller and processor	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter IV, Section 1	Organisational and technical measures	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter IV, Section 1, Art. 50	N/A	Taking into account the nature, scope, context and purposes of processing as well as the risks of varying likelihood and severity to the rights and freedoms of natural persons, the controller shall implement appropriate technical and organisational measures. Where proportionate in relation to processing activities, these measures shall include the implementation of appropriate data protection policies by the controller. The controller shall be able to demonstrate that the processing is performed in accordance with the law. Those measures shall be reviewed and updated where necessary.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
Title 2, Chapter IV, Section 1, Art. 51	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter IV, Section 1, Art. 51(1)	N/A	Taking into account the state of the art, the cost of implementation and the nature, scope, context and purposes of processing as well as the risks of varying likelihood and severity to the rights and freedoms of natural persons, the technical and organisational measures referred to in article 50 shall be designed so as to ensure the effective implementation of the data protection principles and the integration of the necessary safeguards to protect the rights of data subjects, both when defining the means for processing and at the time of the processing itself.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
Title 2, Chapter IV, Section 1, Art. 51(2)	N/A	The technical and organisational measures referred to in article 50 shall ensure that, in principle, only personal data which are necessary for each specific purpose of the processing are processed. In particular, such measures shall ensure that, in principle, personal data are not made accessible without human intervention to an indefinite number of natural persons.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
Title 2, Chapter IV, Section 2	Joint controllers	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Title 2, Chapter IV, Section 2, Art. 52	N/A	Where two or more controllers jointly determine the purposes and means of processing, they shall be joint controllers. On the basis of an agreement between them, they shall, in a transparent manner, determine the respective responsibilities of the joint controllers, in particular as regards the exercising of the rights of the data subject and their duty to provide the information referred to in articles 37 and 38, unless their respective responsibilities are determined by law, decree, ordinance, European law or international agreement. In the agreement one single contact point for data subjects may be designated.	Functional	Intersects With	Joint Processing of Personal Data (PD)	PRI-07.2	Mechanisms exist to clearly define and communicate the organization's role in processing Personal Data (PD) in the data processing ecosystem.	5	
Title 2, Chapter IV, Section 3	Processor	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter IV, Section 3, Art. 53	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter IV, Section 3, Art. 53(1)	N/A	Where processing is entrusted to a processor, the controller shall use only a processor who provides sufficient guarantees in terms of the technical and organisational security measures implemented with regard to the processing operations.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
Title 2, Chapter IV, Section 3, Art. 53(2)	N/A	The processor shall not engage another processor without prior specific or general written authorisation of the controller. In the case of a general written authorisation, the processor shall inform the controller of any intended changes with regard to the addition or replacement of other processors, thereby giving the controller the opportunity to object to such changes.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
Title 2, Chapter IV, Section 3, Art. 53(3)	N/A	Processing by a processor shall be governed by a contract or other legal act that is binding on the processor with regard to the controller and that sets out the subject matter and duration of the processing, the nature and purpose of the processing, the type of personal data and categories of data subjects and the rights and obligations of the controller. That contract or other legal act shall stipulate, in particular, that the processor: 1° only acts on the instructions of the controller; 2° ensures that any persons authorised to process the personal data have committed themselves to confidentiality or are under an appropriate legal obligation of confidentiality; 3° assists the controller by appropriate means in ensuring compliance with the provisions governing the rights of the data subject; 4° deletes or returns all the personal data to the controller once the processing services have come to an end and deletes any existing copies, unless storage of the personal data is required by law, decree, ordinance, European law or international agreement; 5° makes available to the controller all information necessary to demonstrate compliance with this article; 6° meets the requirements set out under paragraphs 2 and 3 to recruit another processor.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
Title 2, Chapter IV, Section 3, Art. 53(4)	N/A	The contract or other legal act referred to in paragraph 3 shall be drawn up in writing, including in electronic form.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
Title 2, Chapter IV, Section 3, Art. 53(5)	N/A	Where, in contravention of this Title, the processor determines the purposes and means of processing, the processor shall be considered to be the controller in respect of that processing.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
Title 2, Chapter IV, Section 3, Art. 54	N/A	The processor and any person acting under the authority of the controller, or the processor, who has access to personal data, shall exclusively process those data on the instructions of the controller, unless required to do so by law, decree, ordinance, European law or international agreement.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
Title 2, Chapter IV, Section 4	Obligations	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter IV, Section 4, Art. 55	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter IV, Section 4, Art. 55(1)	N/A	Each controller and processor shall keep a register of the categories of processing activities carried out under its responsibility. That register shall contain the following information: 1° the name and contact details of the controller or the processor and of its deputy or representative; 2° the name and contact details of the data protection officer; 3° the purposes of the processing; 4° the categories of data subjects; 5° the categories of personal data; 6° the categories of recipients; 7° the transfers of personal data to a third country or an international organisation, including the identification of that third country or international organisation and, where applicable, the documentation attesting that suitable safeguards are in place; 8° the envisaged time limits for erasure of the various categories of data; 9° a general description of the technical and organisational security measures referred to in article 50; 10° the use of profiling; 11° the legal basis; 12° the category of external sources; 13° the protocol referred to in article 20, including the opinion of the data protection officer and the reasons referred to in article 22.	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
Title 2, Chapter IV, Section 4, Art. 55(2)	N/A	The data protection officer shall be involved in the elaboration and maintenance of the register.	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
Title 2, Chapter IV, Section 4, Art. 55(3)	N/A	The register shall be put at the disposal of the competent supervisory authority.	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
Title 2, Chapter IV, Section 4, Art. 56	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter IV, Section 4, Art. 56(1)	N/A	The log files of at least the following processing operations shall be kept in automated processing systems: the collection, alteration, consultation, disclosure, including transfers, combination and erasure. The log files relating to consultation and disclosure shall allow the following to be established: 1° the reasons, date and time of the processing activities; 2° the categories of persons who consulted personal data and, where possible, the identity of the person who consulted the personal data; 3° the systems that disclosed these personal data; 4° and the categories of recipients who received the personal data, and where possible, the identity of the recipients of the personal data. The King can, by decree deliberated on in the Council of Ministers and upon the advice of the supervisory authority, determine other types of processing activities log files must be compiled for.	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
Title 2, Chapter IV, Section 4, Art. 56(2)	N/A	The log files shall be used exclusively to establish whether the processing is lawful, for internal control purposes, to guarantee the integrity and security of the personal data and for the purposes referred to in article 27.	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
Title 2, Chapter IV, Section 4, Art. 56(3)	N/A	The controller and the processor shall make the log files available to the competent supervisory authority on request.	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
Title 2, Chapter IV, Section 4, Art. 57	N/A	On request, the controller and the processor shall cooperate with the supervisory authority in the performance of its tasks.	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Title 2, Chapter IV, Section 4, Art. 58	N/A	Where a type of processing, in particular a processing operation using new technologies, is likely to result in a high risk to the rights and freedoms of natural persons, the controller shall, prior to the processing, carry out an assessment of the impact of the envisaged processing operations on the protection of personal data. The assessment referred to in the first paragraph shall as a minimum contain a general description of the envisaged processing operations, an assessment of the risk to the rights and freedoms of the data subjects, the measures envisaged to mitigate the risks, the precautionary measures, security measures and mechanisms that have been implemented to safeguard the personal data and demonstrate compliance with this Title, taking into account the rights and legitimate interests of the data subjects and other relevant stakeholders.	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
Title 2, Chapter IV, Section 4, Art. 59	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter IV, Section 4, Art. 59(1)	N/A	The controller or its processor shall consult the competent supervisory authority of the controller prior to processing of personal data which will form part of a new filing system to be created; 1° where a data protection impact assessment as referred to in article 58 shows that the processing is likely to result in a high risk if the controller takes no measures to mitigate the risk; or 2° if the nature of the processing, in particular involving the use of new technologies, mechanisms or procedures is likely to result in a high risk to the rights and freedoms of the data subjects. The competent supervisory authority shall be consulted when a law, decree, ordinance or a relevant regulatory measure with regard to the processing is drafted.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter IV, Section 4, Art. 59(2)	N/A	The competent supervisory authority can compile a list of the processing operations in respect of which prior consultation in accordance with paragraph 1 shall take place.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter IV, Section 4, Art. 59(3)	N/A	The controller shall furnish the competent supervisory authority with the data protection impact assessment pursuant to article 58 and, on request, with any other information on the basis of which the competent supervisory authority can assess the conformity of the processing and, in particular, the risks to the protection of personal data of the data subject and the relevant safeguards.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter IV, Section 4, Art. 59(4)	N/A	Where the competent supervisory authority is of the opinion that the intended processing referred to in paragraph 1 conflicts with this Title, in particular if the controller has insufficiently identified or mitigated the risk, the competent supervisory authority shall, within six weeks of receipt of the request for consultation, provide the controller and, where applicable, the processor, with a non-binding written opinion and may use any of its powers conferred on it by law. That period may, taking into account the complexity of the intended processing, be extended by one month. The competent supervisory authority shall inform the controller and, where applicable, the processor, of any such extension within one month of receipt of the request for consultation together with the reasons for the delay.	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter IV, Section 4, Art. 60	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Title 2, Chapter IV, Section 4, Art. 60(1)	N/A	The controller and processor shall implement appropriate technical and organisational measures to ensure a level of security appropriate to the risk, in particular with regard to the processing of personal data as referred to in article 34 of this Act and taking into account the state of the art, the costs of implementation and the nature, scope, context and purposes of processing as well as the risk of varying likelihood and severity to the rights and freedoms of natural persons.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
Title 2, Chapter IV, Section 4, Art. 60(2)	N/A	With respect to the automated processing, the controller or processor shall, based on the assessment of the risk, implement measures to: 1° deny unauthorised persons access to processing equipment used for processing; 2° prevent the unauthorised reading, copying, modification or removal of data media; 3° prevent the unauthorised input of personal data in the filing system and the unauthorised consultation, modification or deletion of stored personal data; 4° prevent the use of automated processing systems by unauthorised persons using data communication equipment; 5° ensure that persons authorised to use an automated processing system have access only to the personal data covered by their access authorisation; 6° ensure that it is possible to verify and establish the bodies to which personal data have been or may be transmitted or made available using data communication equipment; 7° ensure that it is subsequently possible to verify and establish which personal data have been input into automated processing systems and when and by whom the personal data were input; 8° prevent the unauthorised reading, copying, modification or deletion of personal data during transfers of personal data or during transportation of data media; 9° ensure that installed systems may, in the case of interruption, be restored; 10° ensure that the functions of the system perform, that the appearance of any faults in the functions is reported and that stored personal data cannot be corrupted by means of a malfunctioning of the system.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	